

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



September 20, 2018

Honorable Thomas McKnew, Jr,
Judge of the Superior Court
County of Los Angeles
12720 Norwalk Boulevard
Norwalk, CA 90650

Re: Carrillo, Rafael
CDC No.: AL4938
Case No.: VA116025-01
Date of Sentence: 4/24/2012

Dear Honorable Thomas McKnew, Jr.:

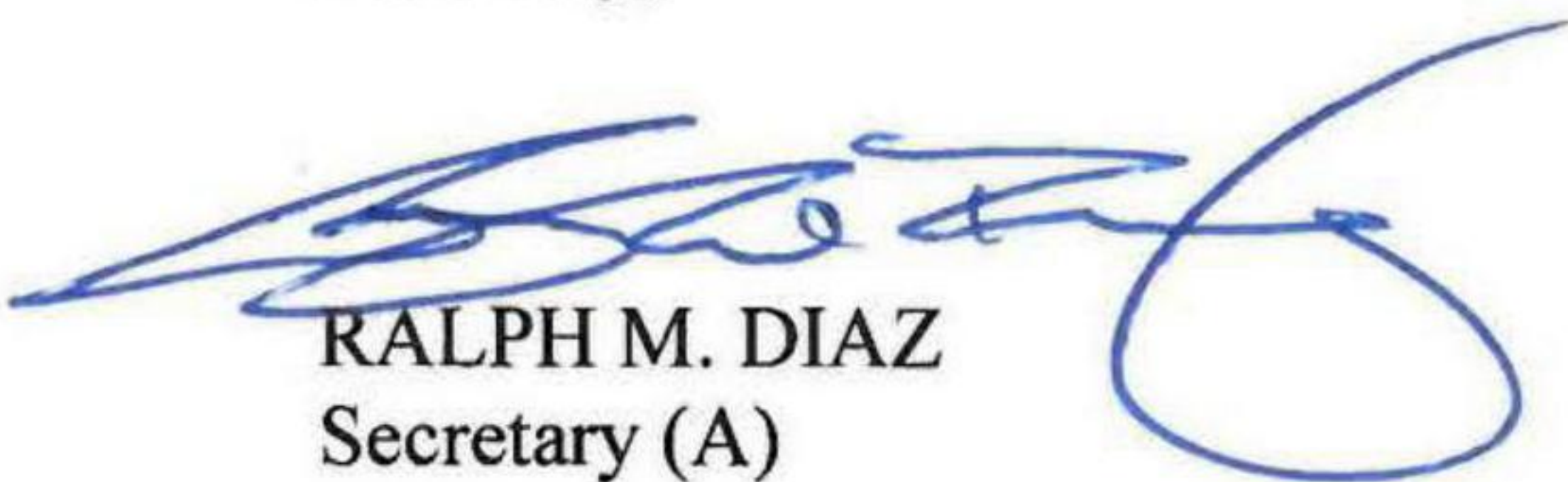
The purpose of this letter is to provide the court with authority to resentence Rafael Carrillo pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Carrillo was sentenced in 2012, and was convicted of section 245, subdivision (A)(1), ASSALT W DEADLY WPON/INSTR. The trial court sentenced inmate Carrillo on 4/24/2012. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Carrillo's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Carrillo's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Private Attorney

✓ 42-4938

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - INDETERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-292 ATTACHED]

CR-292

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES - SOUTHEAST DISTRICT		
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: RAFAEL CARRILLO		DOB: 01-17-90
AKA: CII NO.: A25596883 BOOKING NO.: 2444992		VA116025-01 -A
		-B
		-C
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		☒ AMENDED ABSTRACT -D
DATE OF HEARING 04-24-12	DEPT. NO. SE H	JUDGE THOMAS MCKNEW JR.
CLERK TERRY G. FRALA	REPORTER KATHY SHEPHERD	PROBATION NO. OR PROBATION OFFICER X- 02058810
COUNSEL FOR PEOPLE PHILLIP R. STIRLING		COUNSEL FOR DEFENDANT CHARLES GREG LESTER PRVT COUNSEL

1. Defendant was convicted of the commission of the following felonies:
☐ Additional counts are listed on attachment
_____ (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			CONCURRENT	CONSECUTIVE	654 STAY
						JURY	COURT	PLEA			
1	PC	664-187(A)	ATTEMPTED MURDER	2009	03-13-12	X					
					- -						
					- -						
					- -						
					- -						
					- -						

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL	
1	12022.53(D) PC	25Y TO LIF					25 YRS TO	LIF

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL	
667(A)(1) PC	5					5	0

Defendant was sentenced to State Prison for an INDETERMINATE TERM as follows:

4. ☐ LIFE WITHOUT THE POSSIBILITY OF PAROLE on counts _____
5. ☒ LIFE WITH THE POSSIBILITY OF PAROLE on counts 1
6. a. ☐ 15 years to Life on counts _____ c. ☐ _____ years to Life on counts _____
b. ☐ 25 years to Life on counts _____ d. ☐ _____ years to Life on counts _____
PLUS enhancement time shown above.
7. ☒ Additional determinate term (see CR-290).
8. Defendant was sentenced pursuant to ☒ PC 667(b)-(i) or PC 1170.12 ☐ PC 667.61 ☐ PC667.7 ☐ other (specify):

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for indeterminate sentences. Attachments may be used but must be referred to in this document.

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES - SOUTHEAST DISTRICT										
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: RAFAEL CARRILLO AKA: CII NO.: A25596883 BOOKING NO.: 2444982	DOB: 01-17-90 ☐ NOT PRESENT	<table border="1" style="width:100%; border-collapse: collapse;"> <tr> <td style="width:10%; text-align: center;">VA116025-01</td> <td style="width:10%; text-align: center;">-A</td> </tr> <tr> <td></td> <td style="text-align: center;">-B</td> </tr> <tr> <td></td> <td style="text-align: center;">-C</td> </tr> <tr> <td></td> <td style="text-align: center;">-D</td> </tr> </table>	VA116025-01	-A		-B		-C		-D
VA116025-01	-A									
	-B									
	-C									
	-D									
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		☒ AMENDED ABSTRACT								
DATE OF HEARING 04-24-12	DEPT. NO. SE H	JUDGE THOMAS MCKNEW JR.								
CLERK TERRY G. FRALA	REPORTER KATHY SHEPHERD	PROBATION NO. OR PROBATION OFFICER ☐ IMMEDIATE SENTENCING X-02058810								
COUNSEL FOR PEOPLE PHILLIP R. STIRLING		COUNSEL FOR DEFENDANT ☐ APPTD. CHARLES GREG LESTER PRVT COUNSEL								

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
 ____ (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (Refer to Item 3)	854 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
3	PC	245(A)(1)	ASSALT W DEADLY WPON/INSTR	2010	03-13-12	X			U							8	0
4	PC	594(A)	VANDALISM	2010	03-13-12	X			M			X				1	4
6	PC	487(A)	GRND THFT:PRPRTY OVER\$400	2010	03-13-12	X			M			X				1	4
7	PC	186.26(A)	STREET GANG COERCION	2010	03-13-13	X			M			X				1	4
8	PC	186.26(A)	STREET GANG COERCION	2010	03-13-12	X			M			X				1	4

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
3	12022.7(A)PC	3	186.22(B)(1)(C)	5			8 0
4	186.22(B)(1)(A)PC	1					1 0
6	186.22(B)(1)(A)PC	1					1 0
7	186.22(B)(1)(A)PC	S					
8	186.22(B)(1)(A) P	S					

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. ☒ Deft. sentenced per: ☒ PC 667(b)-(l) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment.) Deft. ordered to report to local Parole Office upon release.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES:

7. ☒ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: 23 4

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: RAFAEL CARRILLO			
VA116025-01	-A-	-B-	-C-
			-D-

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$1,000 per PC 1202.4(b) forthwith per PC 2085.5; \$1,000 per PC 1202.45 suspended unless parole is revoked.
 \$ per PC 1202.44 is now due, probation having been revoked.

Case B: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
 \$ per PC 1202.44 is now due, probation having been revoked.

Case C: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
 \$ per PC 1202.44 is now due, probation having been revoked.

Case D: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
 \$ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
 Case B: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
 Case C: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
 Case D: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

☐ * Victim name(s), if known, and amount breakdown in item 11, below. ☐ * Victim names(s) in probation officer's report.

c. Fine(s):

Case A: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case B: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case C: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case D: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Security Fee: \$280 per PC 1465.8.

e. Criminal Conviction Assessment: \$210 per GC 70373.

10. TESTING a. ☒ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 d. ☐ other (specify):

11. Other orders (specify):

COUNTS 3, 4, 6, 7, AND 8 ARE TO BE SERVED FIRST FOLLOWED BY THE INDETERMINATE TERM COUNT 1 LIFE PLUS 30 YEARS TO LIFE.
 TOTAL SENTENCE IS 23 YEARS 4 MONTHS PLUS 30 YEARS TO LIFE.

12. IMMEDIATE SENTENCE:

☐ Probation to prepare and submit
 Post-sentence report to CDCR per PC 1203c.

Defendant's race/national origin: HIS

13. EXECUTION OF SENTENCE IMPOSED:

- a. ☒ at initial sentencing hearing.
 b. ☐ at resentencing per decision on appeal.
 c. ☐ after revocation of probation.
 d. ☐ at resentencing per recall of commitment. (PC1170(d).)
 e. ☒ other (specify): RE-ENTRY SENTENCING ON 12/03/13

14. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	708	616	92 ☐ 4019 ☐ 2933.1
B			☐ 4019 ☐ 2933.1
C			☐ 4019 ☐ 2933.1
D			☐ 4019 ☐ 2933.1
Date Sentence Pronounced:		Time Served in State Institution:	
04-24-12		DMH	CDCR CRC

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
 To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ other (specify):

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE T. BINGCANG	DATE 12-11-13
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CR-292 (Rev. July 1, 2009)

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - INDETERMINATE



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